



FREE TEMPLATE • INDIE MUSIC INDIA

Publishing Administration Agreement (India)

A template Publishing Administration Agreement between an artist/songwriter (the "Songwriter") and a publishing administrator in India. This is a template for reference and guidance only. Have a qualified entertainment lawyer review before signing any agreement.

What Is Publishing Administration?

A publishing administration agreement (also called a "publishing admin deal") is an arrangement where a company (the Administrator) handles the administrative and royalty collection functions of your music publishing on your behalf, without acquiring ownership of your compositions.

This is different from a full publishing deal, where you transfer ownership of your copyrights to the publisher. In an admin deal, you retain 100% ownership of your songs. The administrator receives a commission (typically 10-25% of royalties collected) for their administrative services.

What an administrator does: _____

- Registers your songs with collecting societies (IPRS and international equivalents)
 - Issues and tracks mechanical, synchronisation, and performance licences
 - Collects royalties from IPRS and international societies
 - Pursues unpaid royalties and disputes
-

Publishing Administration Agreement

This Publishing Administration Agreement ("Agreement") is entered into as of [DATE] between:

Songwriter

Name (Legal): _____

Address: _____

PAN Number: _____

IPRS Membership Number: _____

("Songwriter")

And

Administrator

Company Name: _____

Registered Address: _____

GST Registration Number: _____

IPRS Membership Number (if applicable): _____

("Administrator")

1. Grant Of Rights

1.1 The Songwriter grants to the Administrator the non-exclusive right during the Term to: (a) Register the Works (as defined in Schedule A) with IPRS and all applicable international collecting societies; (b) License the Works for synchronisation, mechanical reproduction, and performance uses; (c) Collect all royalties and fees arising from the exploitation of the Works; (d) Pursue recovery of unpaid royalties on behalf of the Songwriter; (e) Issue licences in the Songwriter's name for uses consistent with this Agreement.

1.2 The Songwriter retains full ownership of all copyright in the Works. This Agreement does not transfer copyright ownership.

2. Territory

This Agreement applies to the following territory:

- Worldwide
- India only
- Specified territory: _____

3. Term

3.1 This Agreement shall commence on [DATE] and continue for [NUMBER] year(s) ("Initial Term"). 3.2 Either party may terminate this Agreement at the end of the Initial Term by providing [NUMBER] days' written notice prior to the end of the Term. 3.3 If no notice is given, this Agreement shall continue on a month-to-month basis until terminated by either party with [30 / 60 / 90] days' written notice.

4. Administration Fee

4.1 In consideration for the services provided under this Agreement, the Songwriter agrees to pay the Administrator an administration fee of ____% ("Admin Fee") of all gross royalties and fees collected by the Administrator in respect of the Works.

4.2 The Admin Fee shall be deducted from royalties before payment to the Songwriter.

4.3 No advance or upfront fee is payable under this Agreement. [MODIFY if advance is involved]

5. Royalty Accounting

5.1 The Administrator shall provide the Songwriter with royalty statements on a [quarterly / semi-annual] basis, no later than [60] days after the end of each accounting period.

5.2 Each statement shall show: royalties collected per work, per source (IPRS, mechanical, sync, etc.), the Admin Fee deducted, and the net amount payable to the Songwriter.

5.3 Royalties shall be paid to the Songwriter by NEFT / UPI / cheque within [30] days of each statement date.

5.4 GST: The Administrator shall issue a GST-compliant invoice for their Admin Fee. The applicable GST rate on publishing administration services is 18%. [Confirm with a CA.]

6. Sync Licensing Approval

6.1 The Administrator shall not license any Work for synchronisation use in any film, advertisement, television programme, or other audiovisual production without the prior written approval of the Songwriter.

6.2 In cases of time-sensitive opportunities, the Songwriter agrees to respond to sync licensing requests within [3] business days. Failure to respond shall be deemed approval for uses priced below INR [AMOUNT].

7. Songwriter'S Representations And Warranties

The Songwriter represents and warrants

that: _____

(a) The Songwriter is the sole or co-owner of the copyright in the Works; (b) The Works do not infringe any third party's copyright, moral rights, or other intellectual property rights; (c) The Songwriter has full authority to enter into this Agreement; (d) There are no existing agreements that conflict with the rights granted herein.

8. Termination

8.1 Either party may terminate this Agreement immediately upon written notice if the other party: (a) Commits a material breach of this Agreement and fails to remedy it within 30 days of written notice; (b) Becomes insolvent or enters into liquidation.

8.2 On termination: _____

(a) The Administrator shall account to the Songwriter for all royalties collected up to the termination date within 60 days; (b) The Administrator's right to license the Works shall cease immediately; (c) Licences already granted in good faith prior to termination shall remain valid for their agreed term.

9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising from this Agreement shall be subject to the jurisdiction of the courts at [City], India.

Signatures

Songwriter

Signature: _____

Printed Name: _____

Date: _____

Witness: _____

Administrator

Signed by (Authorised Signatory): _____

Signature: _____

Printed Name: _____

Designation: _____

Company Seal (if applicable): _____

Date: _____

Schedule A: List Of Works

Song Title	Co-Writers (if any)	IPRS Reg. No.	ISRC	Year of Composition	Notes
------------	---------------------	---------------	------	---------------------	-------

DISCLAIMER: This template is provided for reference and educational purposes only. It is not legal advice. Music industry agreements in India vary significantly and should always be reviewed by a qualified entertainment lawyer before signing.

Created by: _____

Date: _____

Free to use from indiemusicindia.com. Share the page, not the file.

INDIE MUSIC INDIA